

CONCLUSION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.

Calendar Line 8

Case Name: *Zarghami v. Falaha*

Case No.: 25CV474036

According to the allegations of the first amended complaint (“FAC”), plaintiff Mohamad H. Zarghami (“Plaintiff”) and defendant Sara Falaha (“Defendant”) were married and share a minor child, and are parties in the Family Law matter *Falaha v. Zarghami* (Super. Ct. County of Santa Clara, 2024, No. 24FL002138). (See FAC, ¶ 6.) Between May 2025 and the March 5, 2026 filing of the FAC, Defendant recorded no less than twelve confidential communications between them using an electronic amplifying or recording device without Plaintiff’s consent, in violation of Penal Code section 632(a). (See FAC, ¶¶ 7-18.) Further, Defendant hired a private investigator to follow Plaintiff and monitor who entered and exited his home, and arranged for surveillance of Plaintiff’s home without Plaintiff’s consent, even when Plaintiff did not have custody of his daughter. (See FAC, ¶ 19.) Defendant obtained intimate photographs of Plaintiff with a woman in the bedroom of his home and also had Plaintiff followed and videotaped without his consent. (See FAC, ¶ 20.) Defendant also monitored Plaintiff’s location through a GPS tracker, and through his laptop, documenting where he went and where he stayed overnight, without his consent and when Plaintiff was not with his daughter pursuant to their custody agreement. (See FAC, ¶ 21.) Defendant has threatened to release Plaintiff’s private information and photographs and videos of Plaintiff to their community for the purpose of shaming him.

(See FAC, ¶ 22.) On August 25, 2025, Plaintiff was granted a domestic violence restraining order (“DVRO”) against Defendant for the above acts. (See FAC, ¶ 23.)

On March 5, 2026, Plaintiff filed the FAC against Defendant, asserting the following causes of action:

- 1) Statutory damages for invasion of privacy pursuant to Penal Code sections 637.2;
- 2) Invasion of privacy;
- 3) intentional infliction of emotional distress; and,
- 4) declaratory relief/permanent injunction.

Defendant specially moves to strike the FAC pursuant to Code of Civil Procedure section 425.16.

I. DEFENDANT TAAGHOL’S SPECIAL MOTION TO STRIKE THE FAC PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 425.16

In *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, the California Supreme Court established the trial court’s duty in ruling on an anti-SLAPP motion to strike:

Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant’s burden is to demonstrate that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [defendant]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute. [Citation.] If the court finds [that defendant has made its threshold showing], it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’

(*Id.* at 67.)

“[I]n order to establish the requisite probability of prevailing [citation], the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’” (*Navellier v. Sletten* (2002) 29 Cal. 4th 82, 88, quoting *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1123.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Id.* at 88-89, quoting *Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) “In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant (§ 425.16, subd. (b)(2)); though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim.” (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) “To show a likelihood of success, ‘[t]he plaintiff's showing of facts must consist of evidence that would be admissible at trial.’” (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1368.) “The plaintiff may not rely on the allegations in the complaint or assertions in a declaration based on information and belief.” (*Id.*)

Defendant fails to make a threshold showing that the complaint arises from protected activity.

Defendant asserts that the acts complained of—her recording of conversations, tracking of Plaintiff's location, hiring of a private investigator and surveillance of Plaintiff, obtaining of intimate photos of Plaintiff and submission of these items—are protected activity pursuant to Code of Civil Procedure section 425.16, because they “concern conduct during the course of litigation.” (Def.'s memorandum of points and authorities in support of special motion to strike the FAC (“Def.'s memo”), p.9:12-18.) While Defendant does not cite to which subdivision of subdivision (e) the alleged acts fall under, she largely relies on *Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228. In *Huntingdon, supra*, the defendant encouraged demonstrations against animal testing and supported “those who choose to operate outside the confines of the legal system” on its website, and as a consequence, defendant's activists vandalized the plaintiff's employee's home and her husband's car. (*Huntingdon, supra*, 129 Cal.App.4th at pp.1240-1245.) The *Huntingdon* court determined that the causes of action arose from speech that took place in a public forum and concerned “animal testing... an area of widespread public concern and controversy, and the viewpoint of animal rights activists contributes to the public debate” and as “Plaintiffs do not assert that either the public interest or public forum criterion is unsatisfied,” it concluded that the causes of action

arose from protected activity pursuant to section 425.16, subdivisions (e)(3) and (e)(4). (*Id.* at pp.1246-1247 (also stating that “[t]he ‘public interest’ component of section 425.16, subdivision (e)(3) and (4) is met when ‘the statement or activity precipitating the claim involved a topic of widespread public interest,’ and ‘the statement ... in some manner itself contribute[s] to the public debate’ ... [c]ommenting on a matter of public concern is a classic form of speech that lies at the heart of the First Amendment... [s]tatements on SHAC USA’s Web site are accessible to anyone who chooses to visit the site, and thus they ‘hardly could be more public’”).)

Here, the alleged acts are neither statements made in a public forum nor commenting on a matter of public concern, nor contributing to the public debate on such a matter. *Huntingdon* is inapposite.

Defendant instead concludes that she “was collecting evidence for the present litigation by hiring a private investigator and exercising rights per a stipulated order” and thus demonstrates that the causes of action arise from protected activity. However, the protective order does not authorize much of the alleged conduct. With regards to the alleged recording of conversations, the stipulation’s only mention of recording is with regards to the security camera in the child’s bedroom in which it states that “[i]f the camera has an option to block audio recording and/or transmission, then that feature must be activated at all times without exception... [and i]f the camera does not have an option to block audio, then Respondent may place a piece of gum or equivalent on the microphone without causing any visual impairment or video limitation to block the audio” (Kirchick decl. in support of special motion to strike, exh. A (“stipulation”), ¶ 4, subpara. b), and with “conduct during pickups and dropoffs” (*id.* at ¶ 15). The stipulation neither concerns the monitoring of who might come in and out of Plaintiff’s home, nor surveillance with visibility into Plaintiff’s home, tracking of visitors and activity inside when Plaintiff did not have custody of the daughter, nor monitoring of Plaintiff’s location through a GPS tracker or Plaintiff’s laptop when not with his daughter, nor the release of private information, photographs and videos of Plaintiff for the purpose of shaming him. The stipulation does state that “[b]oth parties shall keep location tracking active on their phones and share access with the other party at all times”; however, it also states that “[t]he Parties conduct towards each other... shall be peaceful and respectful at all times... includ[ing] not accessing each other’s personal and private information... [n]either party shall access remotely, electronically, or otherwise the other’s cell phone... or other accounts without prior written consent or otherwise stated in this agreement.” (*Id.* at ¶ 2, subparas. b-c, ¶ 9.) Defendant’s other evidence in support of the motion are text messages between Plaintiff, a supplemental declaration regarding coercive control, religious pressure and boundary violations following the stipulation, a statement regarding SIM card, device functionality and Wi-Fi connectivity, and a discussion regarding the stipulation; this evidence does not demonstrate that the alleged acts arise from protected activity. Defendant’s evidence submitted with her motion fails to meet her threshold burden to demonstrate that the causes of action arise from protected activity.

Subsequent to filing her motion, Defendant filed her own supplemental declaration, denying the allegations and stating that “[t]he only reason that [she] hired a private investigator was to secure evidence that [she] intended to use to present [her] case at trial in this matter.” (Def.’s supplemental decl. in support of special motion to strike, ¶ 3.) As Defendant states that she was attempting to obtain evidence to eventually present her case at trial, this neither concerns any written or oral statement or writing made before a judicial proceeding, nor any written or oral statement or writing made in connection with an issue under consideration or review by a judicial body, and thus cannot be an “act in furtherance of a person’s right of petition” pursuant to Code of Civil Procedure section 425.16, subdivision (e)(1) or (e)(2). Nor is it a written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest pursuant to subdivision (e)(3).

Further, as previously stated, in her supplemental declaration, Defendant also denies most of the alleged acts. (*Id.* at ¶¶ 3-7 (stating “I never asked the private investigator to do anything illegal nor did I ask the private investigator to go inside Mr. Zarghami's home.... I never asked the private investigator to take inappropriate photographs or video of Mr. Zarghami.... I do not have intimate photographs of Mr. Zarghami and another woman in my possession, custody or control.... All of the photographs that my private investigator gave to me from Mr. Zarghami's residence were taken from outside of Mr. Zarghami's residence.... I do not intend to damage Mr. Zarghami's reputation.... I have not engaged in any unlawful conduct as to any of the allegations that Mr. Zarghami has made against me in his August 25, 2025 Request for Domestic Violence Restraining Order.... I do not concede that I have committed any illegal act and adamantly dispute that I have committed any illegal act.... I did not track Mr. Zarghami's location on his laptop without his consent.... I did not record any mediation sessions in this matter”).) The denial of the allegations is essentially a concession that the alleged acts do not constitute protected activity and does not in any event demonstrate that the allegations are not protected activity. (See *Malin v. Singer* (2013) 217 Cal.App.4th 1283, 1303-1304 (stating that “[a] showing that a defendant did not do an alleged activity is not a showing that the alleged activity is a protected activity... [e]ven if we were to accept Arazm and Singer’s assertion that they are innocent of the criminal computer hacking and wiretapping allegations, their claim is ‘more suited to the second step of an anti-SLAPP motion’”); see also *Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193 Cal.App.4th 435, 446-447 (stating that “[a] showing that a defendant did not do an alleged activity is not a showing that the alleged activity is a protected activity... section 425.16 was not enacted to protect an attorney who allegedly hired an ‘investigator’ like Anthony Pellicano to wiretap telephones... [the] causes of action alleging that Gaims engaged in wiretapping activity do not fall within the protective ambit of the anti-SLAPP statute”); see also *Simmons v. Bauer Media Group USA, LLC* (2020) 50 Cal.App.5th 1037, 1046-1047 (stating that “section 425.16 cannot be invoked by a defendant whose assertedly protected activity is illegal as a matter of law and, for that reason, not protected by constitutional guarantees of free speech and petition... ‘it would eviscerate the first step of the two-step inquiry set forth in the statute if the defendant’s mere assertion that his underlying activity was constitutionally protected sufficed to shift the burden to the plaintiff to establish a probability of prevailing... where a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff’s action arises from activity by the defendant in furtherance of the defendant's exercise of protected speech or

petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff's action... [h]ere, Bauer concedes Mathews's placement and use of the tracking device was illegal and not protected speech... [b]ut it insists it merely hired Mathews to take photographs, not illegally place a tracking device... [t]hat assertion, however, contradicts allegations in the first amended complaint that Bauer hired Mathews and LA Intelligence both to stake out the hospital during Simmons's visit and to track and report on Simmons's whereabouts... [t]his factual dispute goes to the merits of plaintiffs' claims and is not relevant to the first prong of the anti-SLAPP inquiry").) The principal thrust of the allegations of the FAC do not suggest any protected activity. (See *Baharian-Mehr v. Smith* (2010) 189 Cal.App.4th 265, 272 (stating that "we decide whether the challenged claims arise from acts in furtherance of the defendant's right of free speech or right of petition under one of the four categories set forth in section 425.16, subdivision (e)... [i]n doing so, we 'examine the principal thrust or gravamen of a plaintiff's cause of action to determine whether the anti-SLAPP statute applies... [w]e assess the principal thrust by identifying '[t]he allegedly wrongful and injury-producing conduct... that provides the foundation for the claim'").) Defendant fails to demonstrate that the FAC's causes of action arise from protected activity.

Accordingly, Defendant's special motion to strike the complaint is DENIED.

As Defendant fails to demonstrate that the alleged actions of which Plaintiffs complains were taken in furtherance of his "right of petition or free speech under the United States or California Constitution in connection with a public issue," as defined in the statute, the Court need not determine whether Plaintiff has demonstrated a probability of prevailing on his claims.

Plaintiff shall prepare and submit a proposed final order consistent with this tentative ruling.